

Module 4

Copyrights and Related Rights: Classes of Copyrights. Criteria for Copyright. Ownership of Copyright. Copyrights of the Author. Copyright Infringements. Copyright Infringement is a Criminal Offence. Copyright Infringement is a Cognizable Offence. Fair Use Doctrine. Copyrights and Internet. Non-Copyright Work. Copyright Registration. Judicial Powers of the Registrar of Copyrights. Fee Structure. Copyright Symbol. Validity of Copyright. Copyright Profile of India. Copyright and the word 'Publish'. Transfer of Copyrights to a Publisher. Copyrights and the Word 'Adaptation'. Copyrights and the Word 'Indian Work'. Joint Authorship. Copyright Society. Copyright Board. Copyright Enforcement Advisory Council (CEAC). International Copyright Agreements, Conventions and Treaties. Interesting Copyrights Cases.

Trademarks: Eligibility Criteria. Who Can Apply for a Trademark. Acts and Laws. Designation of Trademark Symbols. Classification of Trademarks. Registration of a Trademark is Not Compulsory. Validity of Trademark. Types of Trademark Registered in India. Trademark Registry. Process for Trademarks Registration. Prior Art Search. Famous Case Law: Coca-Cola Company vs. Bisleri International Pvt. Ltd.

COPYRIGHTS AND RELATED RIGHTS

- **Copyrights** and **related rights** are part of **intellectual property (IP)**, which includes other categories like patents and trademarks.
- It is governed by the **Copyright Act, 1957** of India.

1. Copyrights:-

- These are **legal rights** given to creators of original works like **books, poems, songs, and computer programs**.
- It ensures that the creator has control over how their work is used, reproduced, or distributed.
- **Example:** If you write a book, copyright law protects your ownership, so no one else can copy or sell your book without your permission.

2. Related rights:-

- These protect other creative works related to performance and production, such as **films, music recordings, plays, paintings, or architecture**.
- These rights are often for performers, producers, or broadcasters who work on the original creative work.

- **Example:** If a musician records a song, the rights to the recording (sound recording) are protected under related rights. Similarly, a filmmaker's movie is protected.

Example:

- A singer records a song composed by a lyricist.
 - The **lyricist** holds the copyright to the lyrics.
 - The **singer** and the **record producer** have related rights to the performance and recording.
- Copyright = Creation (idea or content)
- Related Rights = Presentation (performance or production)

CLASSES OF COPYRIGHTS

- **Literature:** Books, Essays, Research articles, Oral speeches, Lectures, Compilations, Computer programs, Software, Databases.
- **Dramatics:** Screenplays, Dramas.
- **Sound Recordings:** Recording of sounds regardless of the medium on which such recording is made e.g. a Phonogram and a CD-ROM.
- **Artistic:** Drawing, Painting, Logo, Map, Chart, Photographs, Work of Architecture, Engravings, and Craftsmanship.
- **Musical:** Musical notations, excluding any words or any action intended to be sung, spoken or performed with the music. A musical work need not be written down to enjoy Copyright protection.
- **Cinematograph Film:** It is a visual recording performed by any medium, formed through a process and includes a sound recording. For example, Motion Pictures, TV Programs, Visual Recording, Sound Recording, etc

CRITERIA FOR COPYRIGHT

- To qualify for Copyright protection, a **work must exist in some physical (or tangible) form.**
- The **duration of the existence of the physical form** may vary from **a very short period to many years.**
- Virtually any form of expression which can be **viewed or listened to is eligible to qualify as Copyright.** Even **hurriedly scribbled notes** for an **impromptu speech** are **considered** copyrightable material.
- The Copyright work has to be expressed by the creator in his frame of thought. In other words, the **work has to be original** i.e. the author created it from independent thinking void of duplication. This type of work is termed as an **Original Work of Authorship (OWA).** It **may appear similar to already existing works** but should **not be the same.**
- The **original work** may **lack quality or quantity or aesthetic merit** or all these parameters; **still, it will pass the test of copyrightable work.**

- In **addition to originality for the work**, Copyright protection also requires at least some **creative effort** on the part of the author.
- There is **no minimum limit for the extent of creativeness**. It is a subjective matter. The **minimal level of creativity** needed for Copyright protection **depends on the judgment of the evaluator** (i.e **Office of Registrar of Copyright**).

OWNERSHIP OF COPYRIGHT

- The Copyright laws clearly state the ownership of Copyright:
 1. The **person who created the work** is considered as the **first (original) holder (owner) of the Copyright**.
 2. In case the **author is an employee** and has been **contracted to do the work by a proprietor** (of the company/firm/society /organization, etc.), the **owner of the Copyright shall be the proprietor**.
 3. The **government will be the primary owner of the government work** in the **absence of any kind of arrangement**.
 4. The **person delivering a speech** is the **first owner** of the **Copyright**.

Original Holder:

- **Scenario:** Alice writes a novel.

Copyright Owner: Alice is the original owner because she created the work.

Work-for-Hire (Employee Case):

- **Scenario:** Bob, a graphic designer employed by XYZ Company, creates a logo for the company as part of his job.

Copyright Owner: XYZ Company owns the copyright because Bob created it under employment for the company.

Government Work:

- **Scenario:** A government agency publishes a research report written by its employees.

Copyright Owner: The government is the owner unless otherwise specified.

Speech Ownership:

- **Scenario:** Dr. Carol delivers a lecture at a university seminar.

Copyright Owner: Dr. Carol owns the copyright to her speech.

- **To obtain permission to use copyrighted material**, a **request for the same should be made** to the **legal owner** (of the copyrighted material), which could be the **original author**, the **legal heir** (in case of the death of the author), **publisher**, etc.
- The request must mention the following:
 1. Title, author and/or editor, and edition.
 2. Precise material to be used.
 3. The number of copies.
 4. The purpose of the material e.g. educational, research, etc.
 5. Form of distribution e.g. hard copy to classroom, posted on the internet.
 6. Whether the material is to be sold e.g. as part of a course pack.

Title: "The Adventures of Alice"

Author: Alice

Precise Material to Be Used: Chapter 5 of the novel

Number of Copies: 50 copies for students in the class

Purpose: Educational use in a literature course

Form of Distribution: Printed course pack distributed to students

Whether It's Sold: No, the course pack is provided for free.

COPYRIGHTS OF THE AUTHOR

- The Copyrights of the creator/author are legally protected under **Section 14 of the Copyright Act, 1957**.
- The content (i.e. work) created by the author **cannot be used or published by anyone without the authors consent**.
- Copyrights provide **exclusive rights** to the author in the **areas of publication, distribution, and usage**.
- A **Copyright owner enjoys two types of rights** i.e. **Economic Rights** (or Proprietary Rights) and **Moral Rights** (or Personal Rights).
- **Economic Rights** are associated with **financial benefits accruing from the sale of copyrights**.
- **Moral Rights** include **Right of Paternity** and **Right of Integrity**.

- As per the Act, Copyright owners can authorize or prohibit:
 1. Reproduction of the work in any form, including printed publications or sound recordings.
 2. Distribution of copies of the work.
 3. Public performance of the work.
 4. Broadcasting/communicating the work to the public.
Translating the work into other languages.
 5. Adaptation of the work, such as converting a novel into a screenplay.

1. Reproduction of the Work:

- Example: A novelist can permit or stop someone from making copies of their book, whether as an e-book, printed version, or audiobook.

2. Distribution of Copies:

- Example: A musician can control whether their song is sold or shared online or as a physical CD.

3. Public Performance of the Work:

- Example: A playwright can decide if their play is performed in a theater or not.

4. Broadcasting or Communicating the Work to the Public:

- Example: A photographer can restrict someone from sharing their photo on TV, websites, or social media without permission.

5. Translation of the Work:

- Example: An author can authorize or prohibit someone from translating their English novel into Hindi or any other language.

6. Adaptation of the Work:

- Example: A novel's author can allow or deny someone the right to turn their story into a movie screenplay or a graphic novel.

- **Right of Paternity** - **even if the Copyright has been licensed to another party**, the **original author of the work retains the right to claim authorship** i.e. the name of the author/s will remain even though Copyrights have been transferred to another party e.g. a book publisher.

Example: An author sells the copyright of their novel to a publishing house, but their name must still appear as the author of the novel. Even though the publisher controls the rights, the author's identity is preserved.

- **The Right of Integrity** - the **original author has the right to prevent misuse of the work** e.g. alterations/additions/ deletions in work resulting in misrepresentation of the said work or harming the honor and reputation of the author.

Example: A filmmaker creates a documentary. If a TV network edits the documentary in a way that misrepresents the filmmaker's intent (e.g., altering it to spread false information), the filmmaker has the right to object and stop the misuse.

- It is pertinent to mention that **for a work, there can be more than one rights holders**, for instance, a musical sound recording has many rights holders, such as the lyricist, music composer, singer, musicians and sound recorders.

1. Lyricist

- Rights to the written lyrics.
- Example: The person who wrote the words to the song, like Gulzar for a Bollywood song.

2. Music Composer

- Rights to the melody or tune of the song.
- Example: A.R. Rahman who creates the music.

3. Singer

- Rights to the vocal performance in the recording.
- Example: Arijit Singh singing the song.

4. Musicians

- Rights for their instrumental contributions.
- Example: The guitarist or drummer who played in the recording.

5. Sound Recorder/Producer

- Rights to the final sound recording (the master version).
- Example: The recording studio or label (e.g., T-Series) producing and releasing the song.

The **Sound Recorder/Producer** falls under copyright because they are responsible for creating and owning the **master sound recording**—the final, fixed version of a song or piece of music. This version represents the creative effort and technical expertise required to record, mix, and produce the sounds into a tangible format (e.g., a CD, MP3 file, or vinyl).

COPYRIGHT INFRINGEMENTS

- As per the Copyrights Acts, 1957, the following acts are regarded as an infringement of Copyrights:
 1. Making copies for sale or hire or selling or letting them for hire without permission.
 2. Permitting any place for the performance of owned work (in public) where such performance constitutes an infringement of Copyright.
 3. Distributing infringing copies for trade or to such an extent to affect the interest of the owner of the Copyright prejudicially.
 4. Public exhibition of infringing copies for trade purposes.
 5. Importation of infringing copies.
 6. Translating a work without the permission of the owner.

1. Making Copies for Sale or Hire Without Permission:

- **Example:** A printing shop illegally photocopies and sells a best-selling novel without the author's or publisher's consent.

2. Permitting a Place for Unauthorized Performance:

- **Example:** A café hosts a live band performance of copyrighted songs without obtaining the necessary licenses or permissions from the copyright holders.

3. Distributing Infringing Copies for Trade:

- **Example:** A person sells pirated DVDs of a blockbuster movie in the market, causing financial harm to the film producer.

4. Public Exhibition of Infringing Copies:

- **Example:** A shop displays pirated video game copies for sale to customers.

5. Importation of Infringing Copies:

- **Example:** A business imports fake branded music CDs from another country and sells them locally without authorization.

6. Translating a Work Without Permission:

- **Example:** Someone translates a famous English novel into Hindi and publishes it without getting consent from the original author or publisher.

COPYRIGHT INFRINGEMENT IS A CRIMINAL OFFENCE

- According to **Section 63 of the Copyright Act, 1957**, if **any person knowingly infringes** the Copyright, he **qualifies for the criminal offence**.
- The punishment awarded for the infringement (of Copyright) is **imprisonment for six months** with the **minimum fine of ₹ 50,000/-**.
- In case of a **second and subsequent conviction**, the minimum punishment is **imprisonment for one year** and a **fine of ₹ 1,00,000**.
- There is a **dedicated IP division** to **deal with Copyright cases**. Also, there is a **Copyright Board constituted by the Central Government in 1958** to adjudicate certain claims about Copyright.

COPYRIGHT INFRINGEMENT IS A COGNIZABLE OFFENCE

- A police officer (rank of a sub-inspector or higher) can confiscate the infringed Copyright material without issuing a warrant and produce the same in the court of law.

A shop is found selling pirated copies of a popular movie without authorization from the copyright owner. Upon receiving a complaint, a police officer of the rank of sub-inspector or higher:

1. Raids the Shop:

- The officer conducts a raid on the premises where the pirated DVDs are being sold.

2. Confiscates the Pirated Material:

- The officer seizes the unauthorized DVDs without the need for a prior warrant.

3. Produces Evidence in Court:

- The confiscated DVDs are presented as evidence in the court of law for further legal proceedings.

COPYRIGHTS AND INTERNET

- The **twenty-first century is an era of digitization**. The Copyrighted data is quickly transmitted via the internet. This method of **data transmission has brought amendments to the existing Copyright laws**.
- One should be careful of Copyright/fair use principles when downloading material from the internet.
- There is growing concern about the ability to pull Copyrighted material from the internet without permission. Note that **material may have been placed on the internet without the authors permission**.
- In general, **posting material on the internet by the Copyright owner gives an internet user the right to use that material for his personal use, but he cannot use the work for commercial purposes**.

- Electronic distribution of a Copyrighted work should mention the statement that —This work is protected by Copyright laws and is provided for educational instruction only. Any infringing use may be subject to disciplinary action and/or civil or criminal liability as provided by law.
- As per Section 2(o) of the Copyright Act, 1957, Literary Work includes computer programmes, tables and compilations, including computer databases. It is mandatory to supply Source Code and Object Code along with the application for registration of Copyright.

1. Downloading Material from the Internet:

- **Example:** You download a movie from an unofficial website. While the movie is available on the internet, it may still be copyrighted, and downloading it without permission violates copyright laws. Even if it's free to access, it doesn't mean it is free to use or distribute.

2. Posting Material on the Internet for Personal Use:

- **Example:** An author uploads their eBook to their website for free access. A user can download and read the book for personal use, but they **cannot sell, redistribute, or use the book for any commercial purposes** without the author's permission.

3. Electronic Distribution with Copyright Notice:

- **Example:** A university posts a research paper on its website for educational purposes. The paper comes with a disclaimer: "This work is protected by copyright laws and is provided for educational instruction only. Any infringing use may be subject to disciplinary action and/or civil or criminal liability as provided by law." This ensures that the work is used responsibly by students and not for commercial purposes.

4. Copyright Protection for Software:

- **Example:** A software developer releases a program and includes both the **Source Code** and **Object Code** as part of the copyright registration application. By doing this, the developer ensures that their work (the software) is legally protected and that others cannot reproduce or distribute it without permission.

COPYRIGHT REGISTRATION

- You **don't need to send a request or form to the copyright office** to claim copyright for your work.
- If you **register your work with the copyright office**, the **registration acts as proof** that the **work is yours**. It doesn't give you extra rights but **helps prove ownership**.
- A **copyright registration certificate** is helpful if there are **disagreements about ownership, financial issues, or transfer of rights**.
- While it's not compulsory, **registering your work** gives **stronger legal protection** if **someone tries to copy or misuse it**.
- In India, Copyrights matters, including Copyright registration, are administered under the **Copyright Act, 1957** and **Copyrights Rule, 2013**.

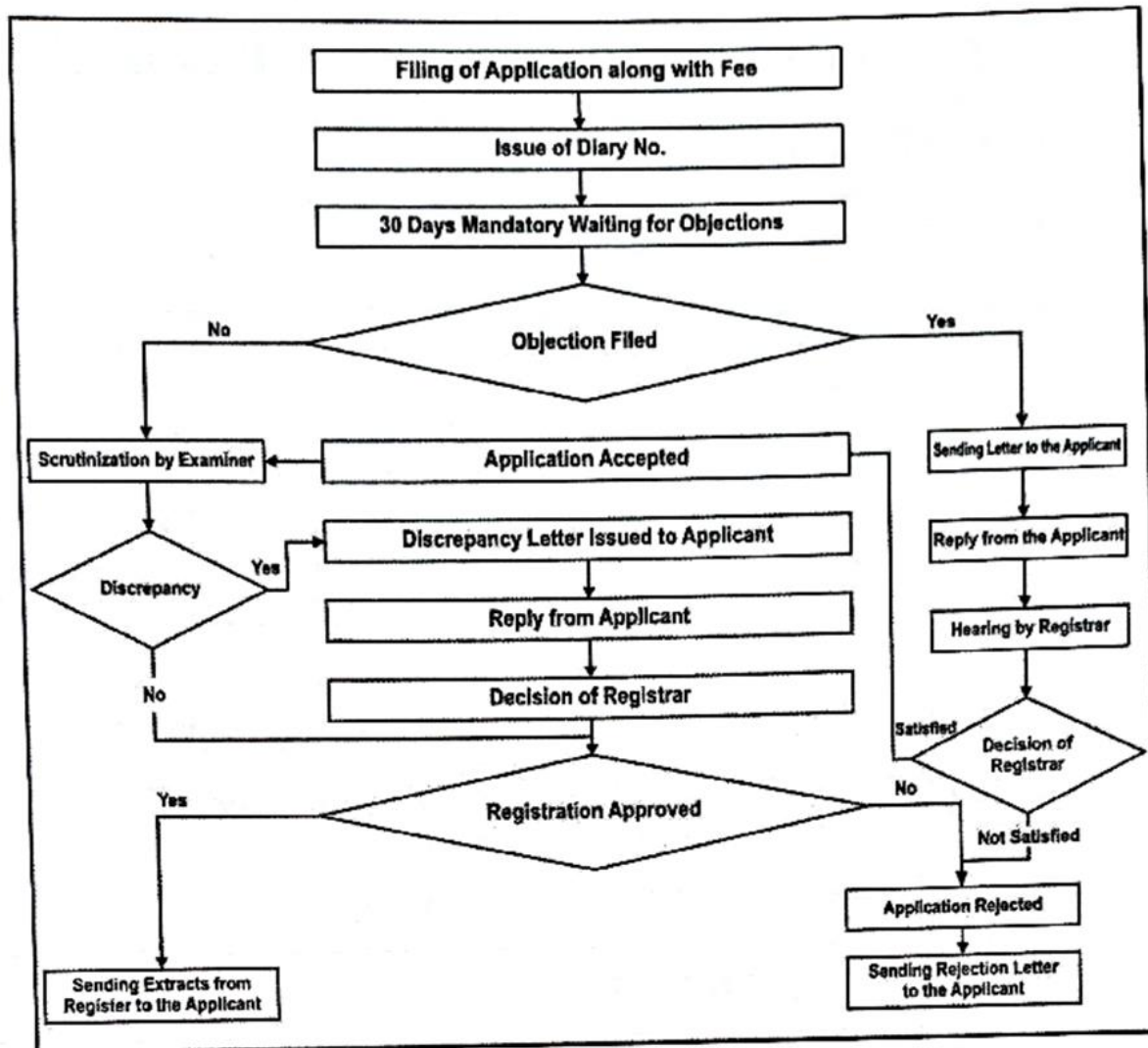
JUDICIAL POWERS OF THE REGISTRAR OF COPYRIGHTS

- The **Judicial Powers of the Registrar of Copyrights** refer to certain **legal abilities granted to the Registrar to handle copyright-related disputes or processes**, similar to the powers of a civil court.

Powers of the Registrar of Copyrights:

- 1. Summoning and Examining People:** The Registrar can call a person involved in a copyright issue to attend a hearing and give a statement under oath.
- 2. Requiring Documents:** The Registrar can demand the production of important documents related to the case.
- 3. Receiving Evidence via Affidavit:** The Registrar can accept written statements, called affidavits, as evidence. **Example:** An author can submit an affidavit stating they wrote the disputed work, along with supporting evidence.

4. **Issuing Commissions:**The Registrar can assign someone to examine witnesses or documents on their behalf. **Example:** If a witness lives far away, the Registrar might appoint a local official to record their testimony.
5. **Requisitioning any public record or copy there of from any court or office:** The Registrar can request official documents or records from other courts or offices. **Example:** They might ask for earlier copyright registrations to verify claims in a case.
6. **Other Prescribed Matters:**The Registrar can handle additional tasks assigned by copyright law.
 - Usually, it takes around **2-3 months to get the work registered** by the Copyright Office. **After applying**, there is a mandatory **waiting period of 30 days**.
 - If any person has any **objection to the claim/s** made in the application, he **can contact the office of the Registrar of Copyrights**.
 - After giving an opportunity of **hearing to both the parties**, the **Registrar** may **decide the case in favor or against the author of the work**. Once the objections (if any) are cleared, the application is evaluated by the examiners.
 - If **any doubts/queries are raised**, the **applicant is given** ample time (**around 45 days**) to **clear these objections**.



- To apply for copyright, a completed application is submitted to the copyright office at the address: The registrar of copyright, plot no 32, Boudhik sampada bhawan, sector 14, Dwaraka, New Delhi – 110075
- The application can be submitted via mail or through the online registration process using the 'E-filing facility' (www.copyright.gov.in).

Table 7.1: Important forms pertaining to Copyrights.

S. No.	Name of Form	Form No.
1.	Application form for registration of Copyright	Form-XIV
2.	Application form for registration of changes in particulars of Copyright	Form-XV
3.	Registration of a Copyright Society	Form-VIII
4.	Application form for the relinquishment of Copyright	Form-I

Fee Structure

- For each work, a separate application form needs to be submitted, along with the requisite fee. The fee is not reimbursable in case the application for registration is rejected.

Table 7.2: Fee structure for Copyrights

Attribute	Fee (₹)
For an application for registration or Copyright Literary, Dramatic, Musical or Artistic work	500/- per work
For an application for registration of Copyright in a Cinematograph Film	5,000/-
For an application for registration of Copyright in a Sound Recording	2,000/-
Provided that in respect of a Literary or Artistic work which is used or is capable of being used in relation to any goods or services	2,000/-
Making any change in Literary, Dramatic, Musical or Artistic work	200/-
Provided that in respect of a Literary or Artistic work which is used or is capable of being used in relation to any goods or services	1,000/-
For an application for registration of change in particulars of Copyright entered in the Register of Copyrights in respect of Cinematograph Film	2,000/-
For an application for registration of changes in particulars of Copyright entered in the Register of Copyrights in respect of Sound Recording	1,000/-
For an application for prevention of importation of infringing copies per place of entry	1,200/-

COPYRIGHT SYMBOL

- It is not necessary to place the **Copyright symbol** © with **your name and year created near your published or printed materials** - but if you do, its easier to nail someone for infringement on your Copyright if you go to court.
- *Example: © 2024 John Doe or Copyright 2024 John Doe.*
- If you're **making something new out of older works** (like a compilation or remix), **mention the year when this new version was first shared with the public**. For some works like **pictures, sculptures, greeting cards, or toys**, the **year doesn't have to be included**. Example for a book compilation: *© 2024 Jane Smith* (if the new version was first published in 2024).
- Include the **name of the copyright owner**, a **short form**, or a **name they're commonly known by**. Example: *© 2024 JS Publishing Co.*

- Use **®** (the letter P in a circle) instead of © to show copyright for **audio works**. Example: **® 2024 Melody Records**.

VALIDITY OF COPYRIGHT

- the validity of Copyright is for **60 years**.
- This period starts either **from the year after the death of the author** (in case of literature, dramatic, musical and artistic works) or **from the date of publication of the work** (in case of cinematograph films, sound recordings, photographs, posthumous publications, works of government and works of international organisations).

COPYRIGHT PROFILE OF INDIA

- A comparative five years (2015-20) study revealed a **gradual increase in the number Copyright applications** in the **first four years** of the study, with a **maximum number of applications (21,905) recorded in the 2019-20 period** .
- The number of applications examined was maximum (34,388) in 2017-18.
- However, it tapered down to 22,658 in 2018-19 and 19,460 in 2019- 20.
- A similar trend was observed in the number of Copyright registrations, with a peak (19,997) observed in 2017-18.

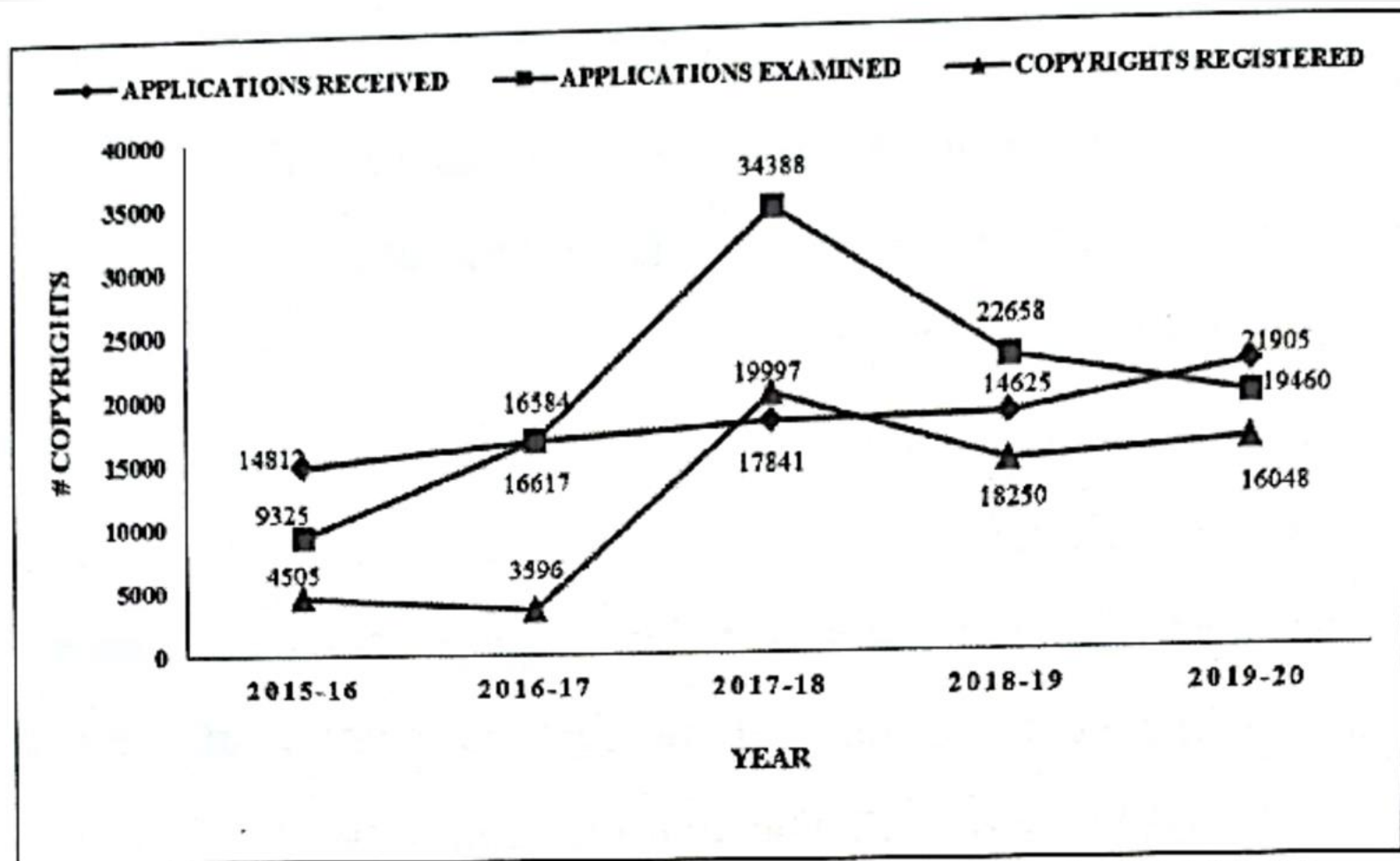


Figure 7.2: Copyrights profile (India) for the period 2015-20.

COPYRIGHT AND THE WORD "PUBLISH"

- **Restricted Sharing is NOT Publication:** If someone writes an article, like "*Life in Himalayas*," and shares it only with a few people or groups with the condition that they must **not share or disclose it further**, it is **not considered published** under copyright law.
- **Making it Public = Publication:** If the author removes any restrictions, like by posting the article online where anyone can access it (e.g., on a blog, social media, or public forum), it is now **published** because it's freely accessible to the public.
- **Copyright Registration Applies to Both:** Whether a work is published or unpublished, the author can still register it under copyright law to protect their rights.

Example: You can copyright your article whether you keep it private or make it public.

Private sharing = Unpublished

Accessible to all = Published

Both types can be registered for copyright protection.

TRANSFER OF COPYRIGHTS TO A PUBLISHER

1. **Authors often transfer copyright for financial benefits:** Many **authors lack the resources to promote or distribute their work widely**. To **benefit financially**, they **transfer their copyrights to publishers** in **exchange for money**. This payment could be: **A lump sum** (one-time payment). **Royalties** (a share of profits from sales). **Both lump sum and royalties**.
2. **Risks of unconditional copyright transfer:** If **authors give away all their rights without restrictions**, **publishers might impose conditions** that **negatively affect the author**. For example: The **publisher may stop the author from sharing their work** (e.g., on an institute's website). The **publisher may deny the author permission to update or revise their work**.
3. **Publisher limitations and lack of effort:** A publisher might **print an insufficient number of hard copies** and also **does not show interest in uploading the soft copy** of the **work** on the **internet**. Hence, one must be **careful in signing an agreement with the publishers**.

- 4. Authors can retain some rights:** Instead of transferring all rights, **authors can create agreements that: Allow publishers to print and sell hard copies but keep digital rights.** Set a **time limit for the publisher's rights**, after which rights return to the author.

Example: An author may let a publisher sell printed books for 5 years while keeping the right to publish an e-book on Kindle themselves.

- 5. Reduced dependency on publishers in the digital era:** **Before the internet, authors needed publishers to share their work.** Now, **authors** can directly **distribute their work online** using platforms like **blogs, YouTube, or self-publishing on Amazon.**

Example: An author self-publishes their novel as an e-book on Amazon Kindle and markets it on social media, avoiding publishers altogether.

- 6. Copyright termination after 35 years:** if an author transfers the full rights of their work to someone else (like a publisher), they still have a chance to **take back their rights after 35 years**. This is a **rule in the Copyright Act**, called **termination of transfer**.

Example:

- An author writes a book and sells the copyright to a publisher in 1990. The publisher prints and sells the book for years, making a lot of money.
- In 2025, the author decides to use the **termination of transfer** rule to get the copyright back.
- After reclaiming the rights, the author can self-publish the book, sell it to a new publisher, or update and revise it.

COPYRIGHTS AND THE WORD 'ADAPTATION'

- In the world of **copyright**, the term "**adaptation**" means **creating a new version or format of an existing work while keeping its core idea intact**. These adaptations transform the original work into a new form that **can reach different audiences or be used in new ways**.

Actions Considered as Adaptations:

1. Turning a play (dramatic work) into a book or story (non-dramatic work):

Example: A famous play like *Romeo and Juliet* is rewritten as a novel or story.

- Original: The play.
- Adaptation: A novel version.

2. Converting a book or painting into a play (drama):

Example: A novel like *Harry Potter* is adapted into a stage play.

- Original: The novel.
- Adaptation: The stage play.

3. **Rearranging or modifying a book or play:**

Example: Updating *Pride and Prejudice* into a modern version with contemporary characters and settings.

- Original: The classic novel.
- Adaptation: A modernized version.

4. **Representing a story or play through pictures:**

Example: Creating a graphic novel or comic book from a novel like *The Hobbit*.

- Original: The novel.
- Adaptation: The graphic novel.

5. **Making a movie out of a book, play, or song:**

Example: Turning *The Lord of the Rings* book series into movies.

- Original: The book series.
- Adaptation: The movie trilogy.

COPYRIGHTS AND THE WORD 'INDIAN WORK'

- In the context of copyright law, **Indian work** refers to certain types of creative works that meet specific criteria related to their authorship and publication. These works are protected under the Indian Copyright Act.

1. Author is an Indian Citizen

If a literary, dramatic, or musical work is created by an Indian citizen, it qualifies as an Indian work.

Example: A novel written by an Indian author living in India or abroad is an Indian work.

2. First Published in India

If the work (like a book, song, or play) is first published in India, it is considered an Indian work, regardless of the author's nationality.

Example: A poetry collection written by a foreign author but first published in India.

3. Unpublished Work by an Indian Citizen

For works that are not yet published, if the author was an Indian citizen when creating the work, it is treated as an Indian work.

Example: An Indian painter creates a painting but has not displayed or sold it yet—it is still considered an Indian work.

COPYRIGHT SOCIETY

- A **Copyright Society** is an organization formed by authors, musicians, filmmakers, and other copyright owners to manage and protect their creative works.
- These societies help copyright owners keep track of how their works are used, collect royalties, and deal with any infringement (illegal use).

Why is a Copyright Society Needed?

Imagine you're a songwriter. Your song gets played on the radio, in movies, and at public events, but you don't know everywhere it's being used. It's also hard to collect the money (royalties) you deserve from so many places. A **Copyright Society** helps solve this by managing everything for you.

What Does a Copyright Society Do?

1. Tracks Rights and Infringements:

- They monitor who uses your work (e.g., plays your song or screens your film) and ensure it's not used without permission.
- Example: If someone uses a movie clip without permission in an advertisement, the society identifies this.

2. Issues Licenses:

- They give official permissions (licenses) for using creative works legally.
- Example: A music company gets a license from the society to use songs in its advertisements.

3. Collects Fees:

- They collect money (royalties) from users of your work, like radio stations, TV channels, or event organizers.

4. Distributes Fees to Owners:

- After deducting a small administrative cost, the society gives the remaining money to the copyright owners.
- Example: After collecting fees from event organizers for playing songs, the society pays the songwriters.

Who Can Form a Copyright Society?

A group of **seven or more copyright owners** (like authors, composers, or filmmakers) can form a Copyright Society. Once registered, the society's license lasts for **five years**.

Examples of Copyright Societies in India:

1. SCRIPT:

- Manages copyrights for films and TV shows.
- Example: Filmmakers use SCRIPT to track the use of their movies on streaming platforms.

2. IPRS (Indian Performing Right Society Limited):

- Manages copyrights for musical works.
- Example: A concert organizer gets a license from IPRS to play music legally.

3. PPL (Phonographic Performance Limited):

- Manages copyrights for sound recordings.
- Example: A café that plays songs pays PPL for the right to use them.

COPYRIGHT BOARD

- The Copyright Board is a regulatory body **constituted by the government, to perform judicial functions** as per the **Copyright Act of India**.
- The Board comprises of a **Chairman and members (2-14)** to arbitrate on Copyright cases. The **Chairman of the Board** is of the **level of a judge of a High Court**.
- the Board has the power to:
 - a) **Appeals Against Registrar of Copyrights:** If someone disagrees with the decision of the Registrar of Copyrights (who handles copyright registration), they can appeal to the Copyright Board.
 - b) **Rectification of Copyright Register:** The Board can **make corrections or changes to entries** in the official **Register of Copyrights**.

- c) **Resolving Copyright Assignment Disputes:** If there's a **disagreement about the transfer of copyright ownership between two parties**, the Board resolves it.
- d) **Grant compulsory licenses to publish or republish works (in certain circumstances):** If a **copyrighted book is unavailable to the public**, the Board can **grant someone a license to republish** it. **After 7 years from the first publication** of a literary or dramatic work, the **Board can allow someone to translate it into another language**.
- e) **Disputes About Publication or Copyright Terms:** The Board decides on **issues like whether a work has been published or the duration of copyright in other countries**. **Example:** If a foreign author claims their book was published in 2005 but another party says 2008, the Board investigates and decides.

- f) **Fixing Royalties for Sound Recordings:** The Copyright Board ensures that the **royalties paid for cover versions are fair and reasonable for both the original owner and the person making the cover version**. It decides a **fixed rate or formula for royalties**, ensuring the **original creator gets proper credit and compensation**.
- g) **Resale Rights for Original Art:** The Board **ensures artists receive a share of profits when their original artworks** (like paintings or sculptures) **are resold**. **Example:** If a painting originally sold for ₹1 lakh is resold for ₹10 lakh, the artist may get a percentage of the profit as determined by the Board.

Approach	When to Use	Example
Copyright Board	For disputes, appeals, compulsory licenses, or royalty-related matters.	Resolving ownership disputes over a song or getting permission to translate a book after 7 years.
Copyright Society	For licensing, royalty collection, or using copyrighted works in specific industries (e.g., music, movies).	Licensing a song for a film or collecting royalties for a public performance of a song.
Registrar Office of Copyright	For registering works, retrieving copyright records, or correcting registration errors.	Registering your novel for copyright protection.

COPYRIGHT ENFORCEMENT ADVISORY COUNCIL(CEAC)

The **Copyright Enforcement Advisory Council (CEAC)** was created by the Government of India in **1991** to help ensure that the **Copyright Act** is properly followed and enforced. Here's what it does:

1. Purpose of CEAC:

- The CEAC regularly **reviews how well the rules of the Copyright Act are being enforced**.
- It **advises the government** on ways to make the enforcement of copyright laws better.

2. Term of the CEAC:

- The council works for **three years** at a time.
- After three years, the government **reforms (reconstitutes)** the council with new or existing members.

3. Examples:

- If there are issues like **pirated movies being sold illegally**, the CEAC can study the problem and suggest stronger actions to stop piracy.
- If **authors or musicians complain** that their work is being stolen or misused, the CEAC may recommend stricter laws or better systems to protect their rights.

INTERNATIONAL COPYRIGHT AGREEMENTS, CONVENTIONS AND TREATIES. INTERESTING COPYRIGHTS CASES

- **Copyright Laws Are Territorial:** **Copyright laws apply only within the country where they are created.** For example, if you create a song in India, it is automatically protected by Indian copyright law, but it's **not protected automatically** in other countries.
- **Protecting Indian Works Abroad:** If an Indian author or creator wants their work to be protected in foreign countries, they must:
 - **Apply separately in each country OR**
 - **Benefit from international agreements and conventions** that India is a part of.
- **India's Membership in Copyright Conventions:** **India is a member of the following conventions,** which **help secure international protection for Indian works**

- **Berne Convention (1886):** Provides automatic copyright protection in member countries without requiring registration.
 - Example: If an Indian writer publishes a book, it's protected in the USA or UK (both members of the Berne Convention).
- **Universal Copyright Convention (1952):** Similar to the Berne Convention, it ensures copyright protection across member countries.
 - Example: A film made in India is protected in Japan through this convention.
- **Rome Convention (1961):** Protects performers (e.g., actors, singers), producers of sound recordings, and broadcasters.
 - Example: A song recorded in India is protected in France under this convention.
- **Multilateral Convention (1979):** Avoids double taxation of royalties paid for copyrighted works in multiple countries.
 - Example: An Indian author earning royalties from their book in Germany and India doesn't have to pay tax twice for the same income.
- **TRIPS Agreement (1995):** Extends copyright protections to international trade and intellectual property rights.

- **Protecting Foreign Works in India:**
 - **India also protects the copyrights of creators from other countries** that are part of conventions like the **Berne Convention, Universal Copyright Convention, and TRIPS Agreement.**
 - Example: A French artist's painting is protected under Indian copyright law because France is a Berne Convention member.

Chapter - 2

Trademarks: Eligibility Criteria. Who Can Apply for a Trademark. Acts and Laws. Designation of Trademark Symbols. Classification of Trademarks. Registration of a Trademark is Not Compulsory. Validity of Trademark. Types of Trademark Registered in India. Trademark Registry. Process for Trademarks Registration. Prior Art Search. Famous Case Law: Coca-Cola Company vs. Bisleri International Pvt. Ltd.

- In simple language, a Trademark (or Trade Mark) is a **unique symbol which is capable of identifying as well as differentiating products or services of one organization from those of others.**
- The word = '**Mark**' stands for a **sign, design, phrase, slogan, symbol, name, numeral, devise, or a combination of these.**
- the Trademark is **anything that identifies a brand to a common consumer.**



ELIGIBILITY CRITERIA FOR TRADEMARK

- 1) **Distinctiveness:** A trademark must be **unique and easily recognizable to identify the goods or services** it represents. It should clearly indicate the source of the product or service in the market.

Example:

- The Nike swoosh logo is distinctive and helps customers instantly recognize Nike products.
- A generic word like "shoes" cannot be a trademark because it's too common and not unique.

- 2) **Descriptiveness:** A trademark **should not directly describe the product or service it represents**. If it does, it is considered **descriptive** and **does not qualify for trademark protection**. This is because **such marks are considered generic and necessary for everyone to use in everyday language**.

Example:

- The name "Sweet Candy" for a candy company is too descriptive because it directly describes the product and does not make it unique.

- If a **descriptive word or phrase becomes widely recognized by consumers** as a brand (beyond its original descriptive meaning), it can qualify as a trademark. This **acquired distinctiveness** is referred to as **“secondary meaning”**.

Example:

- The word **“Apple”** is a common noun that describes a fruit. However, because of widespread use and recognition, it has acquired a secondary meaning associated with the technology company Apple Inc.
- Similarly, **“Windows”**, which is a generic term for window panes, has acquired secondary meaning as a brand for Microsoft's operating system.

3) Similarity to Existing Marks:- A trademark **should not be too similar to an already registered trademark**. It must **stand out and avoid confusion among customers**.

Example:

- If a company tries to use a logo similar to the **Coca-Cola** logo (with the same style or font), it would likely be rejected because it creates confusion with an existing trademark.
- A new clothing brand cannot use a logo that resembles **Adidas's three stripes**, as it would infringe on their trademark.

WHO CAN APPLY FOR A TRADEMARK

1. Individual Proprietor:

- Any person who owns a brand or symbol can apply for its trademark registration.
- **Example:** If you start a clothing business called *StyleMax* and want to protect its name and logo, you can apply for a trademark.

2. Joint Applicants:

- If two or more people jointly own a brand, they can file a trademark application together.
- **Example:** If two designers launch a shoe brand called *TrendWalk* together, they can apply for a trademark as joint proprietors.

3. Organizations or Associations:

- Organizations or associations can apply for a **collective mark**, which is used by all their members to indicate association with the organization.
- **Example:** The *Reliance* logo represents all products or services under the Reliance group, such as Jio, Reliance Fresh, etc.

ACTS & LAWS

- In India, Trademarks are governed under **The Trademarks Act, 1999**
- The Trademark rules are governed by **Trademarks Rules, 2002**.
- The **Acts and Rules have been amended from time to time**. The **latest amendments were done in 2010 and 2017 for Trademarks Acts and Trademarks**, respectively.
- The administration of matters pertaining to Trademarks is carried out by **the Office of CGDPDTM, Govt. of India**

DESIGNATION OF TRADEMARK SYMBOLS

 Indicates that the Trademark is not registered. This symbol can be employed to promote the company's products.

 Denotes an unregistered Trademark. This designation is suitable for endorsing brand services.

 Signifies a registered Trademark/Service. The holder of the registered Trademark holds legal ownership.

CLASSIFICATION OF TRADEMARKS

- Trademarks for goods and services are classified into different groups to help identify and organize them globally. This system is based on the **Nice Agreement (1957)**, which is managed by the **World Intellectual Property Organization (WIPO)**.

1. Global Use of Classification:

- Trademarks are classified in the same way by **149 countries**.
- This includes 84 countries officially part of the Nice Agreement and 65 others that follow its system.
- Regional organizations like the **African IP Organization**, the **Trademark Office of the European Union**, and others also use it.

2. Number of Classes:

- There are **45 classes** in total.
- **34 classes** are for **goods** (physical products).
- **11 classes** are for **services** (things you do, like providing legal advice or security).

Examples of Trademark Classes:

1. Class 1 (Goods - Chemicals):

- Includes items like:
 - Chemicals for industries like agriculture or science.
 - Materials for making plastics or adhesives used in factories.
 - Fire extinguishing products.
 - Fertilizers or compost for farming.
 - Example: A company producing fertilizers like "XYZ Fertilizers" would register under **Class 1**.

2. Class 45 (Services - Legal and Security):

- Includes services like:
 - Legal advice or representation by lawyers.
 - Security services to protect properties or individuals.
 - Personal help services, such as counseling or support groups.
 - Example: A security agency named "SafeGuard Security Services" would register under **Class 45**.

Why Classification Matters:

- It helps organize trademarks so businesses and governments can easily identify which products or services are being protected.

Class No.	Category	Description
1	Goods	Chemicals used in industry, science, agriculture, unprocessed plastics, fire-extinguishing compositions, etc.
2	Goods	Paints, varnishes, lacquers, preservatives against rust and deterioration of wood, etc.
3	Goods	Cleaning products, soaps, detergents, perfumes, cosmetics, essential oils, etc.
4	Goods	Industrial oils and greases, waxes, fuels, and illuminants.
5	Goods	Pharmaceuticals, medicines, veterinary products, sanitary products, dietetic foods, etc.
6	Goods	Common metals, building materials, small items of metal hardware.
7	Goods	Machinery, machine tools, motors (except for vehicles), etc.
8	Goods	Hand tools and implements, cutlery, razors.
9	Goods	Electronics, computers, software, scientific instruments, photographic and optical equipment.
10	Goods	Medical devices, surgical, dental, and veterinary instruments.
11	Goods	Lighting, heating, cooling, and cooking appliances.
12	Goods	Vehicles, cars, motorcycles, ships, aircraft, etc.
13	Goods	Firearms, ammunition, and explosives.
14	Goods	Jewelry, precious metals, watches, and clocks.

15	Goods	Musical instruments and their accessories.	35	Services	Business services: Advertising, business management, consulting, office functions.
16	Goods	Paper products, stationery, office supplies, printed materials.	36	Services	Financial services: Banking, insurance, real estate, investments.
17	Goods	Rubber, plastics, insulation materials.	37	Services	Construction services: Building, repair, and installation services.
18	Goods	Leather goods, bags, wallets, harnesses, animal skins.	38	Services	Telecommunication services: Internet, phone, data communication.
19	Goods	Non-metallic building materials (wood, stone, glass).	39	Services	Transport services: Logistics, travel, delivery services.
20	Goods	Furniture, mirrors, and related accessories.	40	Services	Treatment services: Material treatment, recycling services.
21	Goods	Housewares, kitchen utensils, containers, household items.	41	Services	Education and entertainment: Teaching, training, cultural, sporting events.
22	Goods	Ropes, nets, tents, and related items.	42	Services	Scientific and tech services: IT, software development, scientific research.
23	Goods	Yarns and threads for textiles.	43	Services	Hospitality services: Restaurants, catering, hotel services.
24	Goods	Textiles, fabrics, bed covers, and tablecloths.	44	Services	Medical services: Healthcare, veterinary, agricultural services.
25	Goods	Clothing, garments, footwear, headgear.	45	Services	Legal and security services: Legal advice, security, personal and social services.
26	Goods	Sewing supplies, lace, embroidery, ribbons, buttons, etc.			
27	Goods	Carpets, rugs, mats, and other floor coverings.			
28	Goods	Toys, games, and sports equipment.			
29	Goods	Food (animal origin): Meat, fish, eggs, milk, etc.			
30	Goods	Food (plant origin): Coffee, tea, sugar, rice, bread, confectionery.			
31	Goods	Agriculture products: Grains, fresh fruits, vegetables, seeds, live plants.			
32	Goods	Beverages (non-alcoholic): Water, juice, soft drinks.			
33	Goods	Alcoholic beverages: Wines, spirits, liquors.			
34	Goods	Tobacco products: Tobacco, cigars, cigarettes, related items.			

REGISTRATION OF A TRADEMARK IS NOT COMPULSORY

While it's not mandatory to register a trademark, doing so offers several benefits:

1. **Legal Protection:** A registered trademark gives the owner legal rights to protect it against unauthorized use by others. For example, if someone uses your logo without permission, you can take legal action easily if it's registered.
2. **Exclusive Rights:** The owner has the full right to use the trademark for promoting their business. For instance, Coca-Cola's logo is exclusively theirs and can't be used by competitors.
3. **Brand Recognition:** A trademark helps build a strong brand identity. For example, Nike's "swoosh" logo makes it instantly recognizable and trusted by customers.
4. **Asset Creation:** A registered trademark becomes an intangible asset for the business, adding value to the company. For instance, Apple's logo is a valuable asset that enhances its brand value.

VALIDITY OF TRADEMARK

- In India, a **registered Trademark** is **valid for 10 years**.
- The period **can be extended** every 10 years, perpetually.
- As per the Indian Trademarks Act, the **renewal request is to be filed** in the **form 'TM-R' within one year before the expiry** of the last registration of the mark.

TYPES OF TRADEMARK REGISTERED IN INDIA

- **1. Word Marks:** These are trademarks that consist of **words that can be spoken, spelled, and remembered**. For example, the trademark 'BAJAJ' is named after the industrialist Mr. Jamnalal Bajaj.
- **2. Invented and Unique Words:** It is better to **use created or invented words as trademarks**. These are **unique and less likely to be confused with existing trademarks**. Example: 'YAHOO', which stands for 'Yet Another Hierarchical Officious Oracle'.
- **3. Geographical Names:** **Unique or specific geographical names can be used**, but it is better to **avoid common or generic geographical names**. Example: The trademark 'INDIA GATE' is used for food products, even though it refers to a place in India.
- **4. Words with No Relation to Product/Service:** **Choosing words that don't describe the product or service directly is recommended**. Example: 'INDIA GATE' is unrelated to food grains but is a trademark for related products.

- **5. Letters and Numerals:** A trademark can also be a **combination of letters or numbers**. Example: '**YAHOO**' is formed using the initial letters of a phrase.

Avoid common geographical names, common personal names, and words that praise the quality of goods (e.g., 'best', 'perfect', 'super') as trademarks.

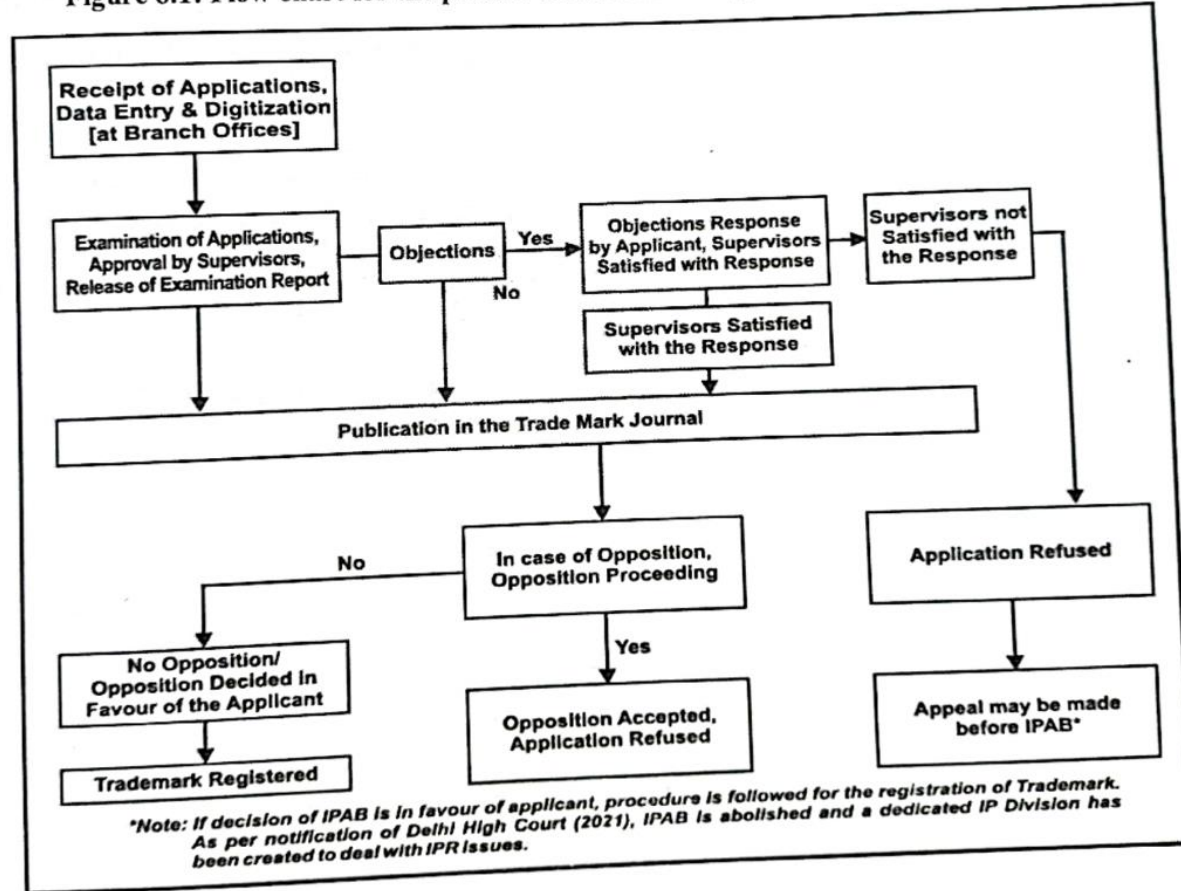
<https://ipindia.gov.in/>

TRADEMARK REGISTRY

S. No.	Office Location	States
1.	Mumbai	Maharashtra, Madhya Pradesh, Chhattisgarh and Goa.
2.	Ahmedabad	Gujarat and Rajasthan and Union Territories of Daman, Diu, Dadra and Nagar Haveli.
3.	Kolkata	Arunachal Pradesh, Assam, Bihar, Orissa, West Bengal, Manipur, Mizoram, Meghalaya, Sikkim, Tripura, Jharkhand and Union Territories of Nagaland, Andaman & Nicobar Islands.
4.	New Delhi	Jammu & Kashmir, Punjab, Haryana, Uttar Pradesh, Himachal Pradesh, Uttarakhand, Delhi and Union Territory of Chandigarh.
5.	Chennai	Andhra Pradesh, Telangana, Kerala, Tamilnadu, Karnataka and Union Territories of Pondicherry and Lakshadweep Island.

PROCESS FOR TRADEMARKS REGISTRATION

Figure 8.1: Flow chart for the process of Trademark registration.



- To get a **trademark registered**, the **owner needs to apply**, which can be done personally **or through a trademark agent**. Before applying, its important to check **if the trademark is already in use or similar to existing ones**. This is called a **prior art search** and can be **done using online tools** like:
 - **CGPDTM Public Search** (Indian government portal)
 - **Trademark Electronic Search System (TESS)**
 - **WIPOs Global Brand Database**
 - **Steps for Trademark Registration:**
 1. **Conduct a Prior Art Search:** Check if your trademark is unique.
 2. **Submit the Application:** The application can be submitted by the owner or an agent. Once submitted, an **application number is assigned**.

3. **Examination:** A **professional examiner checks the application**. If everything looks good, the **application is published** in the **official Trademark Journal**. If there are **issues**, the **examiner sends objections** that need to be fixed.
4. **Publication and Objection Period:** The trademark is **published for public viewing**. Anyone who has **concerns can object within 90 days**.
5. **Decision:** After **hearing both sides**, the **officer decides whether to approve or reject the registration**. If **rejected**, the **applicant can challenge the decision** in the **Intellectual Property Appellate Board (IPAB)**.
6. **Registration Certificate:** If all **objections are resolved** and the **application is approved**, the applicant **receives a certificate** confirming their trademark registration.

Case: Coca-Cola Company vs. Bisleri International Pvt. Ltd.

- **Maaza** is a famous mango drink in India.
- Bisleri International Pvt. Ltd. originally owned the trademark "Maaza."
- In 1993, Bisleri sold the trademark, formula, goodwill, and intellectual property rights (IPR) of "Maaza" to Coca-Cola for use in India.

2. Dispute:

- In 2008, Bisleri applied to register the trademark "**Maaza**" in Turkey and began exporting drinks under the same name.
- Coca-Cola objected, claiming this violated their trademark rights since they owned the rights to "Maaza" under the agreement.

3. Coca-Cola's Argument:

- Coca-Cola argued that exporting a product under the name "**Maaza**" was a breach of their exclusive rights.
- They claimed any production or export under the "Maaza" name was an infringement of their trademark rights.

4. Court's Decision:

- The court ruled in Coca-Cola's favor.
- It issued an **interim injunction** (temporary ban) preventing Bisleri from using the "Maaza" name in India or for exports.
- This was considered a violation of Coca-Cola's trademark rights.